

Title: Dabur v. Aveda — Can Anyone Trademark a Word Derived From "Ayurveda"?

Jurisdiction: India

Category: Case Law

Source Citation: Dabur India Limited v. Aveda Corporation, Delhi High Court (interim proceedings)

Plain English Summary:

Dabur, owner of the "Uveda" skincare trademark, sought an injunction against US company Aveda for allegedly infringing it. Aveda's defence was that its name is derived from the generic term "Ayurveda," which no single company can monopolize as personal property — an argument going to the heart of how much exclusivity anyone can claim over Ayurveda-rooted brand names. For an Ayurvedic startup naming a product line, this case flags the real legal risk (and defence) around trademarks built on the word "Ayurveda" itself or close derivatives of it.

The Exact Legal Text:

[Case law, not statute — summarized holding.] Dabur alleged that Aveda's use of its mark infringed Dabur's registered trademark "Uveda," a skincare range also based on Ayurveda therapy, and sought an injunction restraining Aveda's sale in India. Aveda's counsel argued that "the word Aveda is derived from Ayurveda and nobody can claim monopoly over the use of the word," contending that even a registered proprietor cannot appropriate an ancient, generic-origin name as exclusive personal property. The Court reserved its order after hearing arguments on both sides.

Keywords/Triggers:

Dabur vs Aveda, Ayurveda generic term trademark, Uveda trademark dispute, monopoly over ancient name, AYUSH brand naming risk, genericness defence trademark